



Appeal Decision

Site visit made on 26 May 2026

by **C Housden BSc (Hons) MA MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 17th August 2026

Appeal Ref: 6003588

The Barn, Bull Lane, Tiptree, Essex CO5 0BE

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr James Clough against the decision of Colchester City Council.
 - The application ref is 251039.
 - The development proposed is custom and self-build dwelling.
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Decision

1. The appeal is allowed and planning permission is granted for custom and self-build dwelling at The Barn, Tiptree, Essex CO5 0BE in accordance with the terms of the application, ref 251039, subject to the conditions in the attached schedule.

Preliminary Matters

2. As part of the initial appeal submissions the appellant submitted a number of draft unilateral undertakings relating to infrastructure contributions, a payment to the Essex Coast Recreational disturbance Avoidance and Mitigation Strategy and securing the development as self-build/custom housing. Executed obligations were submitted alongside the appellants final comments.
3. The planning obligations would not evolve the development or fundamentally change it from what was originally under consideration by the Council. Furthermore, the Council has had the opportunity to comment upon the draft documents as part of the appeal prior to their execution. I am satisfied that there is no procedural or substantive reasons not to accept the unilateral undertakings. I have made my decision on this basis.
4. In addition, the Council has confirmed in its statement of case that an obligation securing the infrastructure contributions and RAMS payment 'would mean those two reasons for refusal would no longer be relevant and fall away'¹. In relation to the infrastructure contributions, notwithstanding the submission of the planning obligation, the appellant's primary case is the contributions are not required. I therefore consider that this remains to be a main issue. In relation to the RAMS payment, as competent authority I shall still consider this matter in detail in my decision.

Main Issues

5. The main issues are:
 - the effect of the proposal on the character and appearance of the area;

¹ Council Statement of Case P. 4

- location of the development outside a defined settlement boundary;
- accessibility to services and facilities for future occupants;
- whether the infrastructure contributions meet Regulation 122(2) of the Community Infrastructure Levy Regulations (2010).

Reasons

Character and appearance

6. The appeal site is situated outside the settlement boundary of Tiptree. As you travel along Bull Lane away from the settlement boundary, the area changes from a built-up suburban area to an edge of settlement location with a mix of low density commercial and residential development. Adjacent to the appeal site lies a complex featuring large agricultural buildings, whilst to the rear are a limited number of detached dwellings set in spacious plots and some small scale rural buildings. Looking back towards Tiptree along Bull Lane, a number of ridges from the suburban edge of Tiptree are visible. There are also a number of open fields, bound with established vegetation which provides a verdant character and appearance to the area.
7. The appeal site comprises a triangular green open field bound by established hedgerow, with an existing gated access and a dilapidated stable building. The appeal site features as a small part of the low-density countryside settlement edge.
8. The appeal proposal would domesticate and introduce built form to the site. However, the area is influenced by existing built form rather than being an undeveloped rural environment. The development for a single dwelling would be set within a large plot which would be in keeping with the low-density pattern of development and would integrate with it as part of the wider mixed settlement edge. In terms of the specific design of the proposal, whilst the dwelling is fairly large, it would be proportionate to its plot and commensurate with the surrounding development. The Council did not find harm in regard to detailed design matters, and I see no reason to either.
9. The evidence shows that the boundary hedging requires removal given it is Category U. However, all other existing trees and hedgerow would be retained by the development, and a soft landscaping condition would be imposed to help retain the verdant character of the area.
10. I note that the Inspector for the previous appeal at the site found that the scheme for two dwellings would change the character of the area 'to that of a conspicuous domestic cluster' and 'the massing and bulk of the proposed dwellings would be untoward and incongruous'². Given the proposal is for a single dwelling, I am satisfied that these previous objections have been overcome by the appeal scheme through it reducing the overall density, massing and bulk brought by the proposal and subsequently how the proposal reads within the countryside location.
11. As such, I conclude that whilst the proposal would result in change to the appeal site, it would not result in any harm to it and the proposal would be in keeping with the character and appearance of the area. The appeal would therefore comply with Policy SP7 of the North Essex Authorities' Shared Strategic Section 1 Plan (2021)

² APP/A1530/W/23/3323572 p. 11 & 12

(SS1P), Policies OV2, ENV1 and DM15 of the Colchester Borough Local Plan Section 2 (2022) (LPS2) and Policy TIP02 of the Tiptree Neighbourhood Plan (2023) (NP). These policies, amongst other matters, seek to ensure development responds positively to local character and context to preserve and enhance the quality of existing places and their environs, respects the character and appearance of landscapes and the built environment and positively responds to context and ensures development positively integrates with arboricultural assets.

Location

12. Policy SP3 of the SS1P, sets out that existing settlements are the principal focus for growth, where development will be accommodated within, or adjoining the settlement. Policy SG1 of the LPS2 sets out the spatial strategy for the borough. It directs development to the most sustainable and accessible locations in accordance with Policy SP3 and the spatial hierarchy set out within the policy. It recognises Tiptree as a sustainable settlement. Within the countryside of Colchester, the policy sets out development will only be acceptable where it accords with LPS2 Policy OV2.
13. The appeal site is situated outside of the settlement boundary of Tiptree and is therefore within the countryside, as such Policy OV2 of the LPS2 applies. This states residential development within the countryside, will need to demonstrate the scheme respects the character and appearance of landscapes and the built environment and preserves or enhances the historic environment and biodiversity.
14. NP Policy TIP01 sets out that new development shall be focused within the settlement boundary and on the site allocations. Outside of the settlement boundary proposals would only be permitted if it meets a number of criteria, including compliance with Policies SG1 and OV2, along with ensuring the development does not result in coalescence between Tiptree village and the hamlet of Tiptree Heath.
15. For the reasons previously given the development would not result in harm to the character and appearance of the area. It therefore respects the character and appearance of landscapes and the built environment. The proposal would enhance biodiversity through measures secured by a condition. I have no evidence before me of any part of the historic environment which would be affected by the proposal. In addition, owing to the location of the site being broadly surrounded by existing built form it would not result in any coalescence between Tiptree village and the hamlet of Tiptree Heath.
16. The proposal would therefore comply with Policy OV2 of the LPS2, and subsequently LPS2 Policy SG1, NP Policy TIP01 and SS1P Policy SP3. These policies set out the evidence based spatial strategy and plan-led approach to development within the area.

Accessibility to services and facilities

17. The appeal site is situated outside the settlement boundary of Tiptree, which is reached through traveling along Bull Lane. The part of Bull Lane outside of the settlement boundary is unpaved and unlit. The Inspector of the previous appeal described parts of Bull Lane being unmade, in poor condition, and they identified

large puddles along the road. On this basis, the Inspector found future occupiers of the appeal site would be heavily reliant upon the private car³.

18. However, on my visit I observed Bull Lane to be in a materially different condition. The section of Bull Lane set beyond the settlement edge, whilst not paved, had a consistent and even surface finished with compacted stones. The surface appeared robust and easily navigable by foot or cycle until you reach the part of Bull Lane that becomes paved which features footpaths and lighting. I also observed that this element of Bull Lane was very lightly trafficked, as observed by the previous Inspector.
19. At the junction of Bull Lane with Station Road lies a bus stop, and the evidence shows a variety of services and facilities are within 1km of the appeal site within the developed area of Tiptree.
20. Whilst the section of Bull Lane outside the settlement boundary is unlit, given the improved condition of the surface compared to the previous appeal, low volume of traffic, close proximity to the bus stop and Tiptree itself, overall it would be comfortable, convenient and perceived as safe for future occupiers to realistically access the nearby services and facilities from the appeal site by walking or cycling. In these circumstances, I am satisfied that the concerns of the previous Inspector have been overcome through the change in circumstances along Bull Lane.
21. Therefore, in this case, I find that future occupiers would have suitable accessibility to facilities and services through other means than a private vehicle. In this regard, the proposal would comply with LPS2 Policy SG1. This policy, amongst other matters, sets out that development will be supported where a real travel choice is provided and sustainable travel for different purposes is promoted throughout the day.

Contributions

22. The Council contends that contributions towards community facilities and open space and recreation are required. Specifically, it is detailed in the Council's officer report that a contribution of £13,348.95 for improvements at Grove Park Playing Fields and £4104.05 for maintenance and upgrade work to Tiptree United Reformed Church, air conditioning at Tiptree Community Centre, an entrance canopy at St Luke's Church and / or towards a new community facility as part of the Elms Farm development is required.
23. The Planning Obligations: good practice advice (2025)⁴ sets out the evidence that is likely to be required in order to enable an assessment as to whether any financial contributions provided through an obligation meets the relevant tests of the Community Infrastructure Levy Regulations (2010) (the Regulations). This includes relevant development plan policies, quantified evidence of additional demands likely to arise, up-to-date and quantified evidence of the extent that existing facilities or infrastructure cannot meet the additional demands, the methodology for calculating any financial contribution and details of what the financial contribution will be spent on.
24. I have very limited evidence before me to justify these infrastructure contributions. It is unclear how the proposal would generate the demand identified and I have no

³ Paragraph 20 of APP/A1530/W/23/3323572

⁴ Section 2

evidence before me showing how the figures have been calculated. In addition, the list of upgrades that the money is proposed to be spent on is broad, particularly in relation to Grove Park Playing Fields and there is no evidence of how these existing facilities cannot meet the additional demands generated by the development.

25. Therefore, it has not been demonstrated that the infrastructure contributions would be necessary to make the development acceptable in planning terms, directly related to the development and that it would be fairly and reasonably related in scale and kind to the development. It follows that these infrastructure contributions would fail to meet Regulation 122(2) of the Regulations.
26. Regulation 122 makes it unlawful for any planning obligation to be taken into account as a reason to grant planning permission if it does not meet the three tests. A unilateral undertaking has been submitted securing contributions towards community facilities and open space and recreation, however these have been drafted with blue pencil clauses. As I have found that these contributions do not meet Regulation 122 schedule 2⁵ and 3⁶ of the unilateral undertaking shall have no effect and carry no weight.
27. The proposal would not conflict with Policies SP6 of the SS1P. This policy sets out that all development must be supported by the provisions of the infrastructure, services and facilities that are identified to serve the needs arising from the development.
28. I note the Council referred to SS1P Policy SP7 and LPS2 Policy SG6. However, these policies respectively refer to place shaping principles and town centre uses which are not directly relevant to this main issue.

Other Considerations

Habitats sites

29. The Colne Estuary Special Protection Area (SPA), Blackwater Estuary SPA, Abberton Reservoir Estuary SPA, Dengie SPA, Stour and Orwell Estuaries SPA and the Essex Estuaries SAC are subject to statutory protection under the Habitats Regulations. The evidence shows the qualifying features includes breeding and non-breeding populations of seabirds and supporting habitats.
30. The appeal site is situated within the zone of influence of these habitats sites. The evidence shows that increases in residential development within the zone of influence would result in a likely significant effect to the protected sites in combination with other plans and projects through additional recreational disturbance. The development would introduce a net gain of dwellings which would therefore exacerbate the recreational pressures on these sites. As such, in combination with other projects or plans there would be a likely significant effect on the SPAs and SAC.
31. As competent authority, I am therefore required to carry out an Appropriate Assessment. The Essex Coast Recreational disturbance Avoidance and Mitigation Strategy (RAMS) SPD (2020) sets out the strategy to mitigate the in combination effects of development on these sites in relation to recreational disturbance. The

⁵ Open Space Sport and Recreational Facilities Contribution

⁶ Community Facilities Contribution

Essex Coast RAMS seeks to secure a financial contribution for each new dwelling within the zone of influence to fund a strategic mitigation package. This package includes measures such as habitat creation, monitoring, waymarking and education, among other measures. As part of the appeal a planning obligation has been submitted which secures a financial contribution of £169.45 towards the Essex Coast RAMS. Having regard to Regulation 122, I am satisfied that this obligation is required to make the development acceptable, is directly related to the development and is fairly and reasonably related in scale and kind to the development. From reviewing the submitted UU, I am satisfied that it is a legally sound and binding obligation that effectively secures the payment. I am therefore satisfied that I can confidently rely on the UU providing significant weight in this regard.

32. Natural England (NE) has been consulted as part of my Appropriate Assessment. NE has confirmed that the financial contribution of £169.45 towards the mitigation measures set out in the Essex Coast RAMS would be sufficient to avoid an adverse impact to the integrity of the SPAs and SAC.
33. Therefore, as competent authority, I am satisfied the planning obligation would secure and ensure the delivery of mitigation sufficient to address the harm likely to be caused by the development. As such, the proposal would not have an adverse effect on the integrity of the SPAs and SAC.
34. The proposal would therefore comply with Policies SP 2 of the SS1P and Policy ENV1 of the LPS2. These policies, amongst other matters, seek to ensure the protection of designated sites and that RAMS contributions are secured from developments where required.

Planning Obligations

35. I have previously addressed the merits of the unilateral undertaking relating to infrastructure contributions and payment towards the Essex Coast RAMS. Schedules 2 and 3 of the unilateral undertaking shall have no effect based on not meeting Regulation 122, whereas schedule 4 is necessary, directly related and fairly and reasonably related in scale and kind to the development and is appropriately drafted to secure the contributions.
36. An obligation has also been submitted which seeks to secure the dwelling as a unit in accordance with section 1 of the Self-Build and Custom Housebuilding Act (2015). Given the proposal is for a custom/self-build unit the planning obligation is required to make the development acceptable, is directly related to the development and is fairly and reasonably related in scale and kind to the development. It therefore would meet all the requirements of paragraph 58 of the Framework. I am satisfied that it is a legally sound and binding obligation that effectively secures the status of the dwelling as a custom/self-build. I can therefore place significant weight on the obligation.

Conditions

37. I have considered the suggested conditions against the tests in the Framework and the advice contained in the PPG. In meeting the tests of the Framework, I have amended the wording of conditions where necessary.

38. The standard timescale condition for implementation and a plans compliance condition are imposed for the avoidance of doubt and in the interests of certainty.
39. I have imposed conditions requiring the submission and approval of details of the materials to be used in the external surfaces of the dwellings and for a landscaping scheme. This is necessary in the interests of the character and appearance of the area.
40. A condition relating to unexpected contamination being discovered at the site during works is reasonable and necessary in the interests of the safety of future occupiers of the site.
41. A condition limiting the hours of construction is reasonable and necessary in the interest of ensuring the living conditions of nearby occupiers are not undermined.
42. A condition ensuring that works are carried out in accordance with the recommendations and enhancements contained within the Preliminary Ecological Appraisal & Preliminary Roost Assessment is necessary in the interest of ecology and biodiversity.
43. The Council has suggested the removal of permitted development rights in relation to Classes A, B, C, D and E of Part 1, Schedule 2 of the General Permitted Development Order (2015). This is stated to be in the interests of visual amenity to ensure the development avoids an overdeveloped or cluttered appearance. Paragraph 55 of the Framework sets out planning conditions should not be used to restrict national permitted development rights unless there is clear justification to do so. The provisions of the General Permitted Development Order (GPDO) limits the scale of development which could be undertaken through permitted development, and it is unlikely that any future development undertaken through the GPDO would lead to such an adverse effect on the character and appearance of the area to justify the blanket removal. In addition, I have found that the proposal would not be harmful to the character and appearance of the area. There is no clear justification to remove such rights and as such the condition is therefore not necessary to make the development before me acceptable.
44. A condition is also suggested to ensure that the garage space is used for parking only. However, I have concerns regarding the enforceability of such a condition. In addition two parking spaces are shown outside of the on the hard surfacing, so this is not necessary.

Conclusion

45. The proposed development is in accordance with the development plan and there are no material considerations that indicate a decision should be made other than in accordance with it. Therefore, for the reasons given above, the appeal should be allowed.

C Housden

INSPECTOR

-- Schedule of Conditions --

- 1) The development hereby permitted shall begin not later than three years from the date of this decision.
- 2) The development hereby permitted shall be carried out in accordance with drawing nos 24_1352: 001 P01, 002 P02, 003 P02, 005 P02, 006 P02, 007 P01, 008 P02.
- 3) No development above ground level shall take place until details of the materials to be used in the construction of the external surfaces of the development hereby permitted have been submitted to and approved in writing by the local planning authority. The development shall be carried out in accordance with the approved details
- 4) No demolition or construction work shall take place outside of the following times;
Weekdays: 08:00-18:00
Saturdays: 08:00-13:00
Sundays and Bank Holidays: No working.
- 5) In the event that historic land contamination is found at any time when carrying out works in relation to the development, it must be reported in writing immediately to the Local Planning Authority and all development shall cease immediately. Development shall not re-commence until such times as an investigation and risk assessment has been submitted to and approved in writing by the Local Planning Authority, and where remediation is necessary, a remediation scheme has been submitted to and approved in writing by the Local Planning Authority. Development shall only re-commence thereafter following completion of measures identified in the approved remediation scheme, and the submission to and approval in writing of a verification report.
- 6) The dwelling hereby approved shall not be used or occupied until a scheme of hard and soft landscaping works, including replacement hedge and tree planting and means of enclosure, has been submitted to and agreed, in writing, by the Local Planning Authority. This scheme shall incorporate suitable native or naturalised species and include any proposed changes in ground levels and also accurately identify positions, spread and species of all existing and proposed trees, shrubs and hedgerows on the site, as well as details of any hard surface finishes and external works.
- 7) The development shall be carried out in strict accordance with the submitted Preliminary Ecological Appraisal & Preliminary Roost Assessment by Matthew Game Consultancy dated 14 March 2025 for the site, including implementation of the recommendations and Biodiversity Enhancements contained in the Conclusions, Impacts and Recommendations section of the aforementioned report.
- 8) The development shall be carried out in strict accordance with the Arboricultural Method Statement and Tree Protection Plan by Matthew Game Consultancy dated 14 March 2025. Fencing shall be erected in accordance with the approved details before any equipment, machinery or materials are brought onto the site for the purposes of the development, and shall be maintained until all equipment, machinery and surplus materials have been

removed from the site. Nothing shall be stored or placed within any fenced area, and the ground levels within those areas shall not be altered, nor shall any excavation be made.

-- End of Schedule --